

The Department of Agriculture, Fisheries and Forestry administers a range of [Australian Government legislation](#) to manage our biosecurity system, and regulate exports and imports certification. As a Government regulator, the department monitors compliance with import and export legislation. Where required, the department will take action to address non-compliance and enforce laws where this is required.

Managing Australia's biosecurity is a big job and the department promotes a shared responsibility with clients, stakeholders and the general public who can all play their part in protecting Australia. Understanding your legal obligations and proactively seeking to comply with Australian laws is the simplest way to play your part in helping to protect Australia's unique environment, agricultural industries, and animal and plant health.

The compliance and enforcement framework

In line with the Australian Government [regulatory reform agenda](#) the department continues to work with stakeholders to determine methods to improve service delivery, reward compliant behaviour with reduced regulation and increase monitoring and intervention where non-compliance is detected.

Our approach to compliance assumes that most people will comply, or try to comply, with their obligations. In line with our approach to optimise voluntary compliance, we work with clients, stakeholders and the community to raise awareness of any new obligations.

Our compliance posture set out the approach to implementing a smooth transition to the Biosecurity Act 2015. Upon commencement of the Biosecurity Act our [compliance posture](#) articulates the need to verify compliance with the regulatory framework where we will then tailor compliance responses to client behavior to influence them in a positive way.

The [Compliance Policy](#) helps clients understand the department's approach to biosecurity compliance management more generally and specifies how various compliance management tools fit together to drive compliant behaviour. The [infringement notice scheme](#) provides administrative method for dealing with certain breaches of the law and are typically used for low-level offences.

How we manage compliance

The department's compliance program is responsible for developing and implementing processes, standards and targets that measure compliance as described by the [Compliance Policy](#) The policy also addresses:

- our regulatory context – the responsibility we have as a regulator to administer legislation to deliver regulatory outcomes
- our compliance objectives – set to ensure our regulatory systems align with our legislative frameworks and achieve government policy outcomes
- our approach to compliance – how we encourage, monitor, assess and verify compliance
- our approach to non-compliance – how we respond to non-compliance.

Where a person breaches the Biosecurity Act at Australian airports or seaports, they may be referred to Australian Border Force for its consideration of immediate visa cancellation. If your visa is cancelled, you may be denied entry into Australia and held in immigration detention pending removal from Australia. You may also be unable to apply for another Australian visa for up to 3 years. See the [Department of Home Affairs](#) for more information.

For further information on the department's compliance approach, contact [Enforcement](#).

Client responsibilities and obligations

As part of the regulated community you have a number of responsibilities to report, monitor and inform the department where there is risk and when you become aware of potential non-compliance.

Reportable biosecurity incidents

The Biosecurity Act outlines a legislative requirements for persons in charge to [report biosecurity incidents](#) that relate to goods and conveyances that are subject to biosecurity control. Failure to report a biosecurity incident may result in a civil penalty.

Following directions, answering questions and providing information

Under the Biosecurity Act people involved in the importation of goods and conveyances to Australia have a number of obligations to work with biosecurity officers to enable the assessment and management biosecurity risk. It is important to understand your obligations under the Biosecurity Act as a failure to follow directions, answer questions or provide information may result in the issuing of infringement notices or legal action. Learn more about the [Infringement Notice Scheme](#) and the [compliance tools](#) available under the Biosecurity Act 2015.

Report a breach or suspect behaviour on the REDLINE

Some of the best people to spot illegal activity are those who work in the import supply chain or who live in the neighbourhoods located around businesses who import goods from overseas. [Redline](#) is a free call service for people to confidentially report information about suspected breaches of Australian biosecurity, meat or food inspection laws. If you feel like something doesn't add up or see something that looks like a risk to our biosecurity system, meat or food inspection laws [call the Redline](#).

Tell us if you see a pest or disease

Our work to regulate the import supply chain is aligned with Australia's appropriate level of protection (or ALOP) which is aimed at reducing biosecurity risks to a very low level, but not to zero. This means that even with rigorous import declaration, inspection and import treatment requirements in place, there is still a low risk that pest and diseases of biosecurity concerns may enter and establish in Australia.

If you see something that you think [may be a biosecurity concern](#), like exotic snails, bugs or leaf litter that may have come from overseas, tell the department about it.

Source: <https://www.agriculture.gov.au/biosecurity-trade/policy/legislation/compliance>